



File No.: EXP202403285

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection, indications of a possible breach of the regulations within the scope of the competencies of the Spanish Agency for Data Protection were observed, leading to the initiation of actions under file number EXP202300532.

SECOND: The General Subdirectorate for Data Inspection proceeded to conduct preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities under Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (LOPDGDD hereinafter).

In the framework of the investigative actions, two requests for information were sent to LEADDESK, S.L., with NIF B88511092, regarding the complaint indicated in the first section, requesting that, within ten working days, it submit to this Agency the information and documentation specified therein. These requests were registered for dispatch on May 10, 2023, and June 26, 2023.

THIRD: The requests for information, which were notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), were collected by LEADDESK, S.L. at the entity's headquarters on May 25, 2023, and July 6, 2023, as evidenced by the acknowledgments of receipt in the file.

FOURTH: Regarding the requested information, LEADDESK, S.L. has not submitted a response to this Spanish Agency for Data Protection within the deadlines granted for this purpose.

FIFTH: On October 18, 2023, within the framework of file number EXP202300532, the Director of the Spanish Agency for Data Protection decided to archive the actions without having been able to determine the responsibility of LEADDESK, S.L., since this entity has not responded to the two requests for information sent by this Agency. This Resolution, which was notified electronically, was not collected by LEADDESK, S.L. within the availability period, as evidenced by the acknowledgment of receipt in the file, thus being understood as carried out in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on October 30, 2023.

SIXTH: LEADDESK, S.L. was sanctioned by resolutions of the Director of this Agency on April 3, 2023, in file EXP202302415, and on November 17, 2023, in file EXP202310540, for facts distinct from those motivating the present procedure, but for the same infringing conduct of Article 58.1 of the GDPR, classified in Article 83.5 of the GDPR, which is now being imputed again. The resolutions of these sanctioning procedures are final and enforceable.

SEVENTH: According to the report collected from the AXESOR tool, the entity LEADDESK, S.L. is an SME (Microenterprise), established in 2019, with a turnover of (...) euros in 2021.

EIGHTH: On March 15, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against LEADDESK, S.L., in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 58.1 of the GDPR, classified in Article 83.5 of the GDPR.

NINTH: The notification of the aforementioned initiation agreement, which was carried out by electronic means, was not collected by LEADDESK, S.L. within the availability period, as evidenced by the acknowledgment of receipt in the file, thus being understood as carried out in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on March 26, 2024.

TENTH: On April 8, 2024, and under entry registration number REGAGE24e00025709757, LEADDESK, S.L. submitted a document in response to the request for information made within the framework of file EXP202300532. It did not raise any other issues regarding the object of the current sanctioning procedure.

ELEVENTH: On October 11, a resolution proposal was made, proposing that the Director of the

Spanish Agency for Data Protection sanction LEADDESK, S.L. for an infringement of Article 58.1 of the GDPR, classified in Article 83.5 of the GDPR, with a fine of 6,000.00 euros. Furthermore, the procedure was disclosed so that within ten days LEADDESK, S.L. could present any defenses it deemed appropriate and submit any documents and information it considered pertinent, in accordance with Article 89.2 of the LPACAP.

TWELFTH: The resolution proposal was notified in accordance with the rules established in the LPACAP by electronic notification, being collected by LEADDESK, S.L. on October 14, 2024, as evidenced by the acknowledgment of receipt in the file. After the ten working days granted in the resolution proposal for the submission of allegations had elapsed, LEADDESK, S.L. has not submitted any allegations.

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In light of all the actions taken by the Spanish Agency for Data Protection in the present procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: The information requests indicated in the second and third recitals were notified in accordance with the provisions of the LPACAP.

SECOND: LEADDESK, S.L. has not responded to the information requests made by this Agency within the framework of the investigative actions of file EXP202300532 prior to the issuance of the initiation agreement of the present sanctioning procedure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Action after the initiation agreement

In response to the action taken by LEADDESK, S.L. in response to the information requests, the following should be noted.

The response to the information requests provided during the instruction of this procedure does not affect the existence of the proven facts constituting an infringement.

Regarding the information communicated, this Agency acknowledges receipt of the same, without this statement implying any pronouncement on it.

III

Unfulfilled obligation

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In light of the facts presented, it is considered that LEADDESK, S.L. has not provided the Spanish Agency for Data Protection with the information it requested within the timeframes granted for that purpose.

With the aforementioned conduct of LEADDESK, S.L., the investigative power conferred to supervisory authorities by Article 58.1 of the GDPR, in this case, the AEPD, has been obstructed. Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement, attributable to LEADDESK, S.L., for violation of Article 58.1 of the GDPR, which states that each supervisory authority shall have, among its investigative powers:

“a) to order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information necessary for the performance of its tasks.”

IV

Classification and qualification of the infringement

The facts presented are deemed to constitute an infringement, attributable to LEADDESK, S.L.

This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: “failure to provide access in violation of Article 58, paragraph 1.”

The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of an enterprise, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“ñ) Failure to provide access to the personal data, information, premises, equipment, and means of processing required by the competent data protection authority for the exercise of its investigative powers.”

V

Imposed sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

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In light of the facts presented, it is deemed appropriate to impose a sanction on LEADDESK, S.L. for the violation of Article 58.1 of the GDPR as classified in Article 83.5 e) of the GDPR. The sanction to be imposed is an administrative fine in the amount of 6,000.00 euros.

It is noted that no mitigating factors apply, and the following facts have been considered as aggravating:

- Art. 83.2 e) GDPR: any previous infringement committed by the data controller or the data processor. On April 3, 2023, and November 17, 2023, resolutions were issued by the Director of the Spanish Agency for Data Protection in the sanctioning procedures of files EXP202302415 and EXP202310540, respectively, against LEADDESK, S.L., for violations of Article 58.1 of the GDPR, classified in Article 83.5 of the GDPR. These resolutions are final and enforceable. The sanctioned violations are of significant relevance as an aggravating factor due to their proximity in time and because they involve the same infringing conduct that is now being re-imputed.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on LEADDESK, S.L., with NIF B88511092, for a violation of Article 58.1 of the GDPR, classified in Article 83.5 of the GDPR, a fine of 6,000.00 euros (SIX THOUSAND euros).

SECOND: TO NOTIFY this resolution to LEADDESK, S.L.

THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired

without the interested party having exercised this right. The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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Mar España Martí

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